Wilson v. Arseneau

111 O.R. (3d) 56

2012 ONSC 2879

Ontario Superior Court of Justice,
McDermot J.
May 17, 2012

Limitations -- Practice -- Adding parties -- Plaintiff commencing action for injuries arising out of motor vehicle accident within limitation period -- Plaintiff's husband and mother not making Family Law Act ("FLA") claims at that time as their claims would not have exceeded statutory deductible -- Plaintiff committing suicide after expiry of limitation period -- Plaintiff's husband and mother moving successfully to amend pleadings to name them as plaintiffs under s. 61 of Family Law Act -- Moving parties permitted to assert FLA claim as that claim was derivative of main action and main action was brought in time -- Even if FLA claim was statute-barred, claim not discoverable until plaintiff's death -- Family Law Act, R.S.O. 1990, c. F.3, s. 61.

The plaintiff commenced an action for damages for injuries arising out of a motor vehicle accident well within the applicable limitation period. No claim under the Family Law Act ("FLA") was asserted on behalf of her husband and mother as their claims would not likely have been sufficient to exceed the statutory deductible under s. 267.5(7) of the Insurance Act, R.S.O. 1990, c. I.8. The plaintiff committed suicide. Her husband and mother brought a motion to amend the pleadings to name them as plaintiffs under s. 61 of the Family Law Act. The limitation period expired prior to the plaintiff's suicide, and the defendant took the position that the amendment was statute-barred.

Held, the motion should be granted.

The moving parties should be permitted to assert a claim under the FLA as that claim was derivative of the main action, which was brought in time. Moreover, the moving parties had established an evidentiary basis for the assertion that the FLA claim was not discoverable, and indeed may not have accrued, until the plaintiff's death, as it was only at that time that the claim exceeded the statutory threshold. [page57]

Cases referred to

Camarata v. Morgan (2009), 94 O.R. (3d) 496, [2009] O.J. No. 621, 2009 ONCA 38, 78 M.V.R. (5th) 165, 69 C.P.C. (6th) 31, 246 O.A.C. 235; Giroux v. Pollesel (2011), 106 O.R. (3d) 391, [2011] O.J. No. 1627, 2011 ONSC 2259 (S.C.J.) [Leave to appeal granted [2011] O.J. No. 3584, 2011 ONSC 4727, 9 R.F.L. (7th) 117 (C.A.)]; Hughes v. Kennedy Automation Ltd., [2008] O.J. No. 4597, 2008 ONCA 770, 170 A.C.W.S. (3d) 724, affg [2008] O.J. No. 846, 2008 CanLII 8603, 165 A.C.W.S. (3d) 59 (S.C.J.); Lockett v. Boutin, [2011] O.J. No. 5844, 2011 ONCA 809; Peixeiro v. Haberman, [1997] 3 S.C.R. 549, [1997] S.C.J. No. 31, 151 D.L.R. (4th) 429, 217 N.R. 371, J.E. 97-1825, 103 O.A.C. 161, 46 C.C.L.I. (2d) 147, 12 C.P.C. (4th) 255, 30 M.V.R. (3d) 41, 74 A.C.W.S. (3d) 117; Smith Estate v. College of Physicians and Surgeons of Ontario (1998), 41 O.R. (3d) 481, [1998] O.J. No. 4367, 167 D.L.R. (4th) 78, 115 O.A.C. 146, 28 C.P.C. (4th) 389, 26 E.T.R. (2d) 103, 83 A.C.W.S. (3d) 495 (C.A.), consd

Other cases referred to

Bank of Nova Scotia v. PCL Constructors Canada Inc., [2009] O.J. No. 4347, 86 C.L.R. (3d) 102 (S.C.J.); Conflitti v. Dhaliwal, [2010] O.J. No. 4806, 2010 ONSC 3218, 98 R.F.L. (6th) 167 (S.C.J.-Master); Hoffman v. Jekel, [2011] O.J. No. 879, 2011 ONSC 1324 (S.C.J.); Judson v. Mitchele (2011), 108 O.R. (3d) 129, [2011] O.J. No. 4914, 2011 ONSC 6004 (S.C.J.); Lidder v. Amyotte, [2006] O.J. No. 5247, 2006 CanLII 43493, 154 A.C.W.S. (3d) 713 (S.C.J.); Macksoud (Litigation guardian of) v. Carroll (2011), 104 O.R. (3d) 700, [2011] O.J. No. 623, 2011 ONCA 108, 278 O.A.C. 38, 11

C.P.C. (7th) 190; Mazzuca v. Silvercreek Pharmacy Ltd. (2001), 56 O.R. (3d) 768, [2001] O.J. No. 4567, 207 D.L.R. (4th) 492, 152 O.A.C. 201, 15 C.P.C. (5th) 235, 109 A.C.W.S. (3d) 880 (C.A.)

Statutes referred to

Family Law Act, R.S.O. 1990, c. F.3, s. 61 [as am.]

Insurance Act, R.S.O. 1990, c. I.8, s. 267.5(7) [as am.]

Limitations Act, 2002, S.O. 2002, c. 24, Sch. B, ss. 4, 5(1), (a)(iii), (2)

Rules and regulations referred to

Rules of Civil Procedure, R.R.O. 1990, Reg. 194, rules 5.04(2), 26.01

MOTION to amend a statement of claim to add parties.

P. Cho, for plaintiff.

H. Jason Hickman, for defendant.

Endorsement of MCDERMOT J.: --

Introduction

[1] Tanya Wilson is the plaintiff in this personal injury action, which arises out of a motor vehicle accident that occurred on March 15, 2008, in Barrie, Ontario. She commenced this action on February 24, 2010 -- well within the two-year limitation period in the Limitations Act, 2002. [See Note 1 below] Ms. Wilson was married, [page58]but there were no claims in her statement of claim under Part V (Dependent's Claim for Damages) of the Family Law Act. [See Note 2 below]

[2] On December 24, 2011, Ms. Wilson tragically took her own life. She is survived by her husband, William Wilson, as well as her mother, Patricia Norris.

[3] Mr. Wilson brings a motion to continue the action as litigation administrator of the estate of Tanya Amanda Wilson; that request is consented to. However, more contentious is the

request for an amendment of the pleadings to name both Mr. Wilson and Patricia Norris as plaintiffs in this matter under s. 61 of the Family Law Act (the "FLA claim") and to amend the statement of claim to make that claim. The limitation period expired prior to the plaintiff's suicide and the defendant objects to this amendment as being statute-barred as well as prejudicial to her under the circumstances.

[4] For the reasons set out below, I have determined that the Mr. Wilson and Ms. Norris may be added as plaintiffs and that the statement of claim may be amended as requested.

Background Facts

[5] On March 15, 2008, the plaintiff in this matter, Ms. Wilson, was involved in a motor vehicle accident. She alleged that her vehicle was rear-ended by the defendant, Stephanie Arseneau. The injuries suffered were what are generally referred to as "soft tissue injuries"; however, she also stated in her statement of claim that she suffered from resulting anxiety and depression. Part of her claim in this matter was based upon the fact that this accident exacerbated injuries suffered in a previous motor vehicle accident.

[6] The statement of claim was issued on February 24, 2010. Ms. Wilson was examined for discovery; discoveries of the defendant have not yet taken place. Unfortunately and tragically, the plaintiff committed suicide on Christmas Eve 2010. In her suicide note, the plaintiff states that the "insurance company killed me" and that "[t]he car accident pushed me over the top, caused me to drown". The suicide took place well after the two-year limitation period under s. 4 of the Limitations Act, 2002, which expired on March 15, 2010.

[7] Prior to the suicide, neither William Wilson nor Patricia Norris had made an FLA claim. The plaintiff's solicitor, Michael Smitiuch, states in his supplementary affidavit that the plaintiff initially did not seek to add them, her husband and mother, as [page59]plaintiffs and that the moving parties also did not wish to be part of this lawsuit. The affidavit confirms the following: (i) the plaintiff received some assistance in housekeeping from a friend and her husband; (ii)

the plaintiff was able to resume her personal care tasks almost immediately after the accident; and (iii) she was able to drive her husband to work. Mr. Smitiuch states that based upon the facts and the injuries suffered, the moving parties' respective claims "would likely not have been sufficient to exceed the statutory deductable with respect to FLA claims established by s. 267.5(7) of the Insurance Act, R.S.O. 1990, c. I.8". In the meantime, as noted above, the limitation period to make any claim arising out of this accident expired on March 15, 2010.

[8] The suicide, naturally enough, has changed the complexion of the FLA claim in this matter. As noted in Mr. Smitiuch's supplementary affidavit, the "claims of William Wilson and Patricia Norris have changed significantly as they have now suffered a complete loss of care guidance and companionship". They may now have claims well above the deductable established under the Insurance Act. [See Note 3 below] They seek leave to make their FLA claim in this matter pursuant to rules 5.04(2) and 26.01 of the Rules of Civil Procedure. [See Note 4 below]

[9] Counsel for the defendant objects. He states that these parties cannot be added after the expiry of the limitation period.

Analysis

[10] This is a motion to amend the plaintiff's statement of claim pursuant to rule 26.01 of the Rules of Civil Procedure. That rule reads as follows:

> 26.01 On motion at any stage of an action the court shall grant leave to amend a pleading on such terms as are just, unless prejudice would result that could not be compensated for by costs or an adjournment.

[11] Reference may also be had to rule 5.04(2), which allows the adding of a party at any stage of the proceeding:

> 5.04(2) At any stage of a proceeding the court may by order add, delete or substitute a party or correct the name of a party incorrectly named, on such terms as are just, unless prejudice would result that could not be compensated for by

costs or an adjournment. [page60]

[12] These are procedural entitlements that do not create substantive rights. In particular, these rules cannot serve to revive a cause of action which has been extinguished by a limitation period. However, the courts have generally held that these rules should be construed liberally; that is confirmed by Laskin J.'s admonition in a discussion of "special circumstances" under the former limitations statute in Mazzuca v. Silvercreek Pharmacy Ltd. (2001), 56 O.R. (3d) 768, [2001] O.J. No. 4567 (C.A.), where he stated, at para. 70 of the decision:

> In my view, courts ought to be guided by the principle that ordinarily an amendment should be granted "where the opposite party has not been misled or substantially injured by the error", in other words, has not suffered prejudice that cannot be compensated for by costs or an adjournment. See Ladouceur v. Howarth, [1974] S.C.R. 1111, at 1116. Although the court has discretion to refuse the amendment, that discretion ought not often be exercised.

[13] Despite being a minority opinion applicable to a former statute, the suggestion to liberally interpret the rules in issue is of general guidance in matters such as this.

[14] No serious argument was made respecting actual prejudice to the defendant arising from the proposed amendments in this matter. Examinations for discovery of the plaintiff were complete. The claims of the moving party arose due to the death of the plaintiff in December 2010; both Mr. Wilson and Ms. Morris may be examined for discovery on that basis. Correspondence was immediately sent by plaintiff's counsel advising of the plaintiff's death, and the issue of the proposed amendments were raised by plaintiff's counsel in June 2011. No affidavit was filed by the defendant and no evidence proving prejudice was filed by the defendant. I do not find that there is prejudice to be suffered by the defendants through the proposed amendments within the meaning of rules 26.01 and 5.04(2).

[15] There are several issues to be considered in determining whether these individuals should be added as plaintiffs in this matter:

(a) Both parties acknowledged in argument that the FLA claims of the moving parties are derivative from the principle action made by the plaintiff in this matter; as such, does this mean that the FLA claim can be added by way of amendment after the expiry of the limitation period so long as [the] main action was properly commenced?
(b) Does the surpassing of the threshold in this matter create a new cause of action, thereby defeating the limitations argument? [page61]
(c) Alternatively, was the FLA claim discoverable prior to the suicide of the plaintiff on December 24, 2011?

[16] As noted, it was acknowledged in argument by defendant's counsel that the FLA claim is derivative of the main action as set out in H.C. Black, Black's Law Dictionary, 6th ed. (St. Paul, MN: West Publishing, 1990). A derivative action is there defined as:

> Coming from another; taken from something preceding; secondary. That which has not its origin in itself, but owes its existence to something foregoing. Anything obtained or deduced from another.

[17] That an FLA claim is derivative of the main action was confirmed by Cornell J. in Giroux v. Pollesel (2011), 106 O.R. (3d) 391, [2011] O.J. No. 1627, 2011 ONSC 2259 (S.C.J.) [at para. 17]:

> To the extent that Family Law Act claims are derivative in nature, they are based on the entitlement of the principal plaintiff to maintain an action in respect of injuries sustained. Once the threshold of entitlement is met, the Family Law Act claim can proceed, whether or not the principal plaintiff has pursued a claim. Though, practically speaking, Family Law Act claims are generally pursued as part of the principal tort action, there is no statutory requirement that this be done.

[18] As noted by Cornell J. in that case and as pointed out by Mr. Hickman in argument, a number of cases have stated that this type of derivative action cannot be commenced after the expiry of the limitation period for the action it is derived from. In other words, once the limitation period has expired under the Limitations Act, 2002 for the main action for damages, the derivative FLA claim cannot later be commenced.

[19] Mr. Hickman firstly states that the proposed amendments add a claim that is derivative of the main action; he says that the proposed FLA claim cannot be commenced as the limitations period for the main action has expired: see Smith Estate v. College of Physicians and Surgeons of Ontario (1998), 41 O.R. (3d) 481, [1998] O.J. No. 4367 (C.A.) and Camarata v. Morgan (2009), 94 O.R. (3d) 496, [2009] O.J. No. 621 (C.A.).

[20] These were both actions for negligence by survivors of deceased individuals who died soon after the action complained of in the litigation; the actions were brought within two years of the date of death, but more than two years after the incident giving rise to the injury to the deceased. Both cases confirmed that the derivative FLA claims could not be commenced after the expiry of two years from the date of the accident. As stated by Charron J.A., at para. 17 of Smith Estate, it does not matter "that the FLA claims are founded on the wrongful death of a [page62]family member as opposed to injury". In Camarata, the court stated [at para. 10]:

> Section 61(1) of the Family Law Act creates a cause of action in favour of certain relatives of "a person [who] is injured or killed by the fault or neglect of another under circumstances where the person is entitled to recover damages." The section contemplates claims triggered by the injury or death of that person. While the death of the injured party will have consequences for the kind of damages claimed, death does not create a new cause of action. The cause of action under s. 61 arose in the circumstances of this case when the deceased suffered his injuries.

[21] See, also, Macksoud (Litigation guardian of) v. Carroll (2011), 104 O.R. (3d) 700, [2011] O.J. No. 623 (C.A.), at fn

1.

[22] These cases obviously stand for the proposition that a FLA litigant cannot commence his or her derivative claim more than two years after the accident giving rise to the primary cause of action. That is distinguishable from the present case, however. Here the plaintiff began the action on a timely basis without a joined FLA claim and there is no issue that the primary action is properly constituted and in time. The moving parties are seeking to add themselves as parties and it is acknowledged that their action is derivative of the first, which, as noted above, means that their claim "has not its origin in itself, but owes its existence" to the main action, which was begun in time. It therefore appears to me that a derivative action under the Family Law Act may be added to the main action outside of the limitation period by way of amendment so long as the main action is properly constituted. It only stands to reason if the main action was issued on time, derivative actions subject to that limitation period may be added to the main action thereafter as they are not subject to an independent limitation period as noted above.

[23] Mr. Hickman points out, however, that this works a substantial mischief. What happens if, for example, the main action is settled and then the plaintiff in that action later dies in similar circumstances; could the dependents later, well outside the limitation period, at any time commence their action under the Family Law Act?

[24] Some comfort can be found from process and the nature of final releases which generally have the following characteristics: (i) releases are signed prior to any settlement funds being disbursed; (ii) those releases generally include a release by the estate of the deceased; and (iii) the release is binding upon the heirs, successors and assigns of the plaintiff. However, even if those releases are not binding on the dependents of the original plaintiff who would presumably not have signed those releases, [page63]the action is generally dismissed without costs on consent once it is settled. Once the main action is so dismissed, then the commencement of a Family Law Act claim would then be governed

by the principles as expounded in Smith Estate, Camarata and Maksoud, supra; the dismissal of the main action would prevent the recommencement of a derivative FLA claim.

[25] Moreover, there are other principles at play here. Firstly, even if the FLA claim is subject to the two-year limitation period, the issue then becomes that of discoverability. Under s. 4 of the Limitations Act, 2002, a cause of action becomes statute-barred two years after the "day on which the claim was discovered". Under s. 5(1) of the Limitations Act, 2002, a claim becomes discoverable as follows:

> 5(1) A claim is discovered on the earlier of,
> (a) the day on which the person with the claim first knew,
> (i) that the injury, loss or damage had occurred,
>
> . . . . .
>
> (iii) that the act or omission was that of the person against whom the claim is made, and
> (iv) that, having regard to the nature of the injury, loss or damage, a proceeding would be an appropriate means to seek to remedy it; and
> (b) the day on which a reasonable person with the abilities and in the circumstances of the person with the claim first ought to have known of the matters referred to in clause (a).
>
> (2) A person with a claim shall be presumed to have known of the matters referred to in clause (1) (a) on the day the act or omission on which the claim is based took place, unless the contrary is proved.

[26] This was a codification of the common law discoverability rule enunciated in Peixeiro v. Haberman, [1997] 3 S.C.R. 549, [1997] S.C.J. No. 31, which examined the applicability of that rule to the thresholds under the Insurance Act. Even if the derivative action could not be brought into these proceedings because it was statute-barred, this would not have any effect if the matter was not discoverable when the limitation period expired. It should be noted that there was no issue of discoverability in either of Smith Estate, Camarata or Maksoud, supra.

[27] Mr. Cho argues that, in this case, the FLA claim only became discoverable upon the death of the plaintiff. Until that time, the evidence is that the moving parties had a nominal claim under the Family Law Act. The affidavit of the solicitor confirms that the plaintiff had resumed her personal care tasks almost immediately but she received some assistance with her [page64]housekeeping and she was able to drive her husband to work. She was making some improvement and, as such, the solicitor deposes that any FLA claim of either Mr. Wilson or the plaintiff's mother would have been well below the deductable contained in s. 267.5(7) of the Insurance Act. As such, an actionable claim was not discoverable until everything shifted as a result of the plaintiff's suicide in December 2010.

[28] In Giroux v. Pollesel, supra, Cornell J. of this court considered a similar issue wherein the plaintiff suffered injuries and brought an action on a timely basis. It was only after a second surgery resulting from the injuries well after expiry of the limitation period, that it was determined an FLA claim lay in favour of the putative s. 61 plaintiffs as it was then that the plaintiff discovered that she was unemployable. Cornell J. set out the test as follows [at para. 28]:

> The issue then is when the proposed plaintiffs, or a reasonable person in their circumstances, ought to have known of the facts set out in this section. They must provide a sufficient evidentiary basis in support of their claim and establish that this did not occur until sometime after the date of the accident, and, in this case, not until sometime after the plaintiff first brought her claim.

[29] It is clear that the onus is on the parties seeking to be added to show that they come within the discoverability rule: see s. 5(2) of the Limitations Act, 2002.

[30] It is apparent that the threshold issue raised by Mr. Cho in argument, and in the affidavit of Mr. Smitiuch, is a cogent factor in discoverability. This is firstly supported by the wording of s. 5(1)(a)(iii) of the Limitations Act, 2002.

That section states that a factor in whether a matter is discoverable includes a determination as to whether, "having regard to the nature of the injury, loss or damage, a proceeding would be an appropriate means to seek to remedy it". Obviously, if a claim for a matter reasonably lies under the threshold, a "proceeding" would not be "an appropriate means" of seeking a remedy. To hold otherwise, and to hold that a FLA claim below the threshold should have been brought in any event, would obviously encourage commencement of litigation without merit and put litigants needlessly at the risk of costs.

[31] This has been confirmed, again, by a number of cases. In Peixeiro v. Haberman, supra, the Supreme Court of Canada examined the issue of the Insurance Act deductable where an action was brought more than two years after the accident which gave rise to the claim; the court held that the cause of action arose only when it was reasonably determined that the damages exceeded the threshold. At para. 30, Major J. stated: [page65]

> Under the no-fault system in place at the time of the accident, the mere happening of an injury in a car accident does not found a cause of action. No cause of action exists until sufficient severity of injury exists.

[32] Later, at para. 33, Major J. states that "[t]he cause of action under s. 206(1) does not arise unless the injury meets the statutory exceptions set out in the Insurance Act". See, also, Hoffman v. Jekel, [2011] O.J. No. 879, 2011 ONSC 1324 (S.C.J.), at paras. 9 and 10.

[33] Mr. Hickman argues, however, that the onus on the moving parties to provide a "sufficient evidentiary basis" has not been met in the present case. He notes that the only evidence that has been provided is a solicitor's affidavit indicating the suicide and noting the fact that there was a threshold issue prior to that suicide. There was no evidence from either Mr. Wilson or the plaintiff's mother of their respective states of mind prior to the suicide or indicating from themselves as to why they elected not to bring the action. He states that due diligence by the putative plaintiffs has to be proven through

an affidavit from them alone proving that they were unaware of the potential claim or some other good reason why they did not commence their FLA claim. That evidence is necessary, according to Mr. Hickman, before they can be added as parties subsequent to the expiry of the limitation period.

[34] With respect, providing an evidentiary basis is not the same as proving the facts on the balance of probabilities. The test for joinder of a party under these circumstances is not steep. This has been confirmed in a number of cases. In Hughes v. Kennedy Automation Ltd., [2008] O.J. No. 846, 2008 CanLII 8603 (S.C.J.), Glithero J. stated, at para. 24, as quoted in Giroux, supra, at para. 25, "[i]f the evidentiary record produced demonstrates that there is an issue in regard to discoverability, the appropriate result is to add the parties but grant leave to raise the limitations defence". Later in Giroux, at para. 30, Cornell J. quotes Master Glustein in Bank of Nova Scotia v. PCL Constructors Canada Inc., [2009] O.J. No. 4347, 86 C.L.R. (3d) 102 (S.C.J.), at para. 68, when he states that "'not very much evidence' is required to meet 'not a high threshold'". As noted by Mr. Hickman, there are credibility issues to the issue of discoverability; in such a case, the finding of fact as to discoverability should be determined at trial rather than a motion to add the party. The test for discoverability at a stage such as the present motion involves a similar test to that of summary judgment and if there is a genuine issue for trial as to discoverability, the motion should be granted: see Lidder v. Amyotte, [2006] O.J. No. 5247, 2006 CanLII 43493 (S.C.J.) and [page66]Conflitti v. Dhaliwal, [2010] O.J. No. 4806, 2010 ONSC 3218, 98 R.F.L. (6th) 167 (S.C.J.-Master).

[35] Mr. Hickman, however, cites several cases which state that there must, however, be reasonable evidence of "due diligence" regarding discoverability of the FLA claim: see Hughes v. Kennedy Automation Ltd., [2008] O.J. No. 4597, 2008 ONCA 770; Lockett v. Boutin, [2011] O.J. No. 5844, 2011 ONCA 809; and Giroux v. Pollesel, [2011] O.J. No. 3584, 2011 ONSC 4727 (the latter being a decision on a motion for leave to appeal from Cornell J.'s decision noted above). These cases arise out of the presumption of a plaintiff's knowledge of a

cause of action as set out in s. 5(2) of the Limitations Act, 2002. They say that in order to add a party after the expiry of a limitation period there must be sufficient evidence of due diligence by that party to determine whether a claim lay after the event happened. A solicitor's affidavit, or an affidavit of his or her assistant, may not do. The debate was outlined in Giroux, a decision of Hennessy J. granting leave to appeal of Cornell J.'s decision noted above, at para. 20:

> Cornell J. determined that the threshold for evidence on discoverability was low. In Hughes v. Kennedy Automation Ltd., [2008] O.J. No. 846, 2008 CarswellOnt 1184 (S.C.), Glithero J. addressed the issue and stated that there was an evidentiary onus on the claimant to produce an evidentiary record to allow the court to determine whether the limitation period had expired because the claimant did not know of and could not with due diligence have discovered the existence of their potential claim. Often the evidentiary record includes medical reports or records which show a difference or worsening in the condition of the claimant or at least unpredictability in the condition of the plaintiff. In this case, the solicitor's affidavit repeats the assertions of the FLA claimants that since the second surgery, which was past the expiry of the limitation period, they are now performing housekeeping and have lost guidance, care and companionship. There is no reference to the status quo prior to the surgery or what knowledge, with due diligence, they ought to have known prior to the surgery. There is no reference to any efforts made by the FLA claimants to inquire into their potential claims before the expiry of the limitation period or the passing of the record. There is a suggestion that the FLA claimants did not pursue a claim because of threshold issues, which raises the question of whether they were aware that there was a claim at the time the principle claim was commenced. This motion judge found the evidence to be sufficient, however, with respect, it seems to be lacking on the question of due diligence.

[36] This may be the case where the situation changed to a degree in a manner such as that described in Giroux, where it was only determined that the plaintiff was unemployable after a

second surgery. That is distinguishable from the present case, where the suicide created a wholly different situation from that prior to December 24, 2010. The evidence in this case is that, [page67]based upon the solicitor's knowledge, he was of the opinion that prior to the death, there may have been a claim, but it was well below the threshold. Prior to the death, there was evidence that there was little, if any, burden on either of the claimants arising from the plaintiff's injury. There was a wholesale shift after the plaintiff's suicide, and the present case is accordingly distinguishable from Giroux as there can be no issue as to diligence when there was no claim beyond the threshold prior to the date of the plaintiff's death. This is not a situation such as that in Hughes, where there was an issue as to when the appellants first consulted with counsel or that in Lockett, where the issue was whether there was due diligence in determining the identity of the defendant or as to when expert's reports were available. Here due diligence could serve no purpose as the suicide of the plaintiff was the triggering event; prior to that date, there was no need for diligence as there was then little or no basis for an FLA claim.

[37] As well, the Giroux decision is under appeal to Divisional Court, and it was a motion for leave to appeal. At para. 18 of the report, Hennessey J. stated that "there is some reason to doubt the correctness of the decision" on the grounds noted above.

[38] At the date of release of this decision, the Divisional Court has not released its decision in this matter; counsel informed me during argument that the case was due to be argued in the next few weeks from the date of argument. That being said, the fact that Hennessey J. had some reason to doubt the correctness of the decision is not a determination that Cornell J.'s decision was wrong; it means that the determination "is open to serious debate" and, as such, may deserve appellate review: see Judson v. Mitchele (2011), 108 O.R. (3d) 129, [2011] O.J. No. 4914, 2011 ONSC 6004 (S.C.J.), at paras. 28 and 35. As such, there is no determination that Cornell J. was incorrect in his decision in Giroux. All that I can say is that at this point in time, I find Cornell J.'s reasoning in that

case both logical and compelling and it appears to me that it is in the interests of justice to determine the issues of due diligence and discoverability of the claim at a trial of the issue, especially if there are credibility issues involved.

[39] There is a final point. If Major J. in Peixeiro v. Haberman, supra, is correct that a cause of action does not arise until the damages go beyond the deductable, then it may very well be that the cause of action only accrued when the plaintiff committed suicide. Every cause of action has a number of elements that must be in place when it actually accrues; one of those essential elements in every cause of action is an actionable loss. If a party [page68]is below the deductable, he or she has no actionable loss and no cause of action has accrued, or is capable of being brought. In the present case, the loss appears to have increased beyond the deductable when the suicide occurred and, as such, in the present case, the FLA claim may only have accrued in December 2010, when the suicide occurred. It is to be noted that none of the cases considering derivative FLA actions, being Smith Estate, Camarata and Maksoud, supra, considered the issue of the FLA claims being below the deductable prior to the date of death; however, in this regard, Peixeiro may be in conflict with the several Court of Appeal cases dealing with derivative actions.

Conclusion

[40] Therefore, I find that Mr. Wilson and the plaintiff's mother, Patricia Norris, may be added as parties and the statement of claim be amended in order to make the FLA claim as requested. It is my finding that the statement of claim may be so amended as their FLA claim is derivative of the main action, which was in time. Moreover, the moving parties have established an evidentiary basis for the fact that the claim for damages under the Family Law Act was not discoverable, and indeed may not have accrued, until the death of the plaintiff in December 2010. Accordingly, even if the FLA claim was statute-barred based upon the date of the accident, it was not "discoverable" until the claim went beyond the threshold.

[41] Accordingly, there shall be an order to go that the statement of claim shall be amended as requested in paras. 2

and 3 of the notice of motion. In addition, and on consent, an order to go according to para. 1 of the notice of motion.

[42] If the parties cannot agree on the issue or quantum of costs, the parties may make an appointment with the trial coordinator to speak to the issue of costs before me. If that is done, both parties shall submit short written submissions as to costs, including costs memoranda and any offers to settle that may have been made. The plaintiffs are to make their submissions and the defendant is to have ten days to respond. The costs submissions to be no more than three pages in length excluding offers to settle and costs memoranda.

Motion granted.

Notes

Note 1: S.O. 2002, c. 24, Sch. B.

Note 2: R.S.O. 1990, c. F.3.

Note 3: R.S.O. 1990, c. I.8.

Note 4: R.R.O. 1990, Reg. 194.
